



Bill Number: S.B. 1234

Werner SUBSTITUTE Floor Amendment

Reference to: printed bill Amendment

drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Restores the requirement that the court appoint an attorney for a child in all proceedings involving dependency or termination of parental rights.
2. Removes the requirement that a guardian ad litem be appointed to represent a juvenile's best interests.
3. Requires the appointed attorney to determine whether the child has diminished capacity that would impact the child's ability to express their own opinion or make their own decisions.
4. Requires the attorney, in making this determination, to consult with the child, the child's family and any other individuals who know the child.
5. Requires the attorney to meet with the child at least once every month if the child is at least 5 years old.
6. Directs an attorney to use substituted judgment to determine what is in a child's best interest if the attorney determines that a normal attorney-client relationship is not reasonably possible.
7. Requires the attorney, when utilizing substituted judgement, to make a good faith effort to determine the child's needs and wishes and consult with the child, the child's family and anyone who knows the child in order to represent the child in accordance with the child's needs and wishes.
8. Requires an attorney, if there is reasonable belief that a child is at risk of substantial physical, financial or other harm, and the child is incapable of adequately acting in their own interest, to:
 - a) inform the court of the risk of harm, taking into account the wishes and values of the child while respecting the child's social connections; and
 - b) request that the court appoint a guardian ad litem for the child.

WERNER SUBSTITUTE FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1234
(Reference to printed bill)

I move the following SUBSTITUTE amendment to the JUDICIARY AND ELECTIONS Committee
Amendment to
SENATE BILL 1234 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 8-221, Arizona Revised Statutes, is amended to
3 read:

4 8-221. Counsel right of juvenile, parent or guardian;
5 appointment; guardian ad litem

6 A. The court shall appoint an attorney for a child in all
7 delinquency proceedings that commence with a petition or that may involve
8 detention ~~[, dependency proceedings or termination of parental rights~~
9 ~~proceedings that are conducted pursuant to this title].~~ [IN A DELINQUENCY
10 PROCEEDING,] The court shall appoint the CHILD'S attorney before the first
11 hearing. The CHILD'S attorney shall represent the child at all stages of
12 the proceedings ~~and, in a dependency proceeding, through dismissal.~~

13 [B. THE COURT SHALL APPOINT AN ATTORNEY FOR A CHILD IN ALL
14 PROCEEDINGS INVOLVING DEPENDENCY OR TERMINATION OF PARENTAL RIGHTS BEFORE
15 THE FIRST HEARING. THE APPOINTED ATTORNEY SHALL DETERMINE WHETHER THE
16 CHILD HAS DIMINISHED CAPACITY THAT WOULD IMPACT THE CHILD'S ABILITY TO
17 EXPRESS THE CHILD'S OWN OPINION OR TO MAKE DECISIONS FOR THE CHILD. IN
18 MAKING THIS DETERMINATION, THE APPOINTED ATTORNEY SHALL CONSULT WITH THE
19 CHILD, THE CHILD'S FAMILY AND ANY OTHER INDIVIDUALS WHO KNOW THE CHILD. IF
20 THE CHILD IS AT LEAST FIVE YEARS OF AGE, THE APPOINTED ATTORNEY SHALL MEET
21 WITH THE CHILD NOT LESS THAN ONCE A MONTH.

22 C. IF AN ATTORNEY WHO IS APPOINTED PURSUANT TO SUBSECTION B OF THIS
23 SECTION DETERMINES THAT A NORMAL ATTORNEY-CLIENT RELATIONSHIP IS NOT
24 REASONABLY POSSIBLE TO MAINTAIN AND THAT THE CHILD IS NOT ABLE TO DIRECT
25 THE LEGAL REPRESENTATION DUE TO DIMINISHED CAPACITY OR THE CHILD'S

1 INABILITY TO EXPRESS THE CHILD'S OWN OPINION, THE APPOINTED ATTORNEY SHALL
2 USE SUBSTITUTED JUDGMENT TO DETERMINE WHAT THE CHILD WOULD DECIDE IF THE
3 CHILD WAS CAPABLE OF MAKING AN ADEQUATELY CONSIDERED DECISION WHEN
4 CONSIDERING WHAT IS IN THE BEST INTEREST OF THE CHILD. THE APPOINTED
5 ATTORNEY SHALL DO ALL OF THE FOLLOWING:

6 1. MAKE A GOOD FAITH EFFORT TO DETERMINE THE CHILD'S NEEDS AND
7 WISHES.

8 2. CONSULT WITH THE CHILD, THE CHILD'S FAMILY AND ANY OTHER
9 INDIVIDUALS WHO KNOW THE CHILD.

10 3. REPRESENT THE CHILD IN ACCORDANCE WITH THE DETERMINATION OF THE
11 CHILD'S NEEDS AND WISHES.

12 D. IF IN THE COURSE OF REPRESENTING THE CHILD AN ATTORNEY WHO IS
13 APPOINTED PURSUANT TO SUBSECTION B OF THIS SECTION REASONABLY BELIEVES
14 THAT A CHILD IS AT RISK OF SUBSTANTIAL PHYSICAL, FINANCIAL OR OTHER HARM
15 AND THAT THE CHILD DOES NOT HAVE THE CAPACITY TO ADEQUATELY ACT IN THE
16 CHILD'S OWN INTEREST, THE APPOINTED ATTORNEY SHALL DO EITHER OF THE
17 FOLLOWING:

18 1. INFORM THE COURT OF THE SUBSTANTIAL RISK OF HARM, TAKING INTO
19 ACCOUNT THE WISHES AND VALUES OF THE CHILD AND THE CHILD'S BEST INTERESTS
20 AND RESPECTING THE CHILD'S FAMILY AND SOCIAL CONNECTIONS.

21 2. REQUEST THAT THE COURT APPOINT A GUARDIAN AD LITEM FOR THE
22 CHILD.]

23 [B.] [E.] If a parent or guardian is found to be indigent and
24 entitled to counsel, the juvenile court shall appoint an attorney to
25 represent the person or persons unless the person knowingly, intelligently
26 and voluntarily waives counsel.

27 [C.] [F.] Before any court appearance that may result in
28 institutionalization or mental health hospitalization of a juvenile, the
29 court shall appoint counsel for the juvenile if counsel has not been
30 previously appointed or retained by or for the juvenile.

31 [D.] [G.] The county board of supervisors may fix a reasonable sum
32 to be paid by the county for the services of an appointed attorney.

33 [E.] [H.] In a county where there is a public defender, the public
34 defender may act as attorney in either:

35 1. A delinquency or incorrigibility proceeding when requested by
36 the juvenile court.

37 2. Any other juvenile proceeding that is conducted pursuant to this
38 title if the board of supervisors authorizes the appointment of the public
39 defender.

40 [F.] [I.] In all [juvenile court proceedings in which the
41 dependency petition includes an allegation that the juvenile is abused or
42 neglected] ~~[DEPENDENCY PROCEEDINGS OR TERMINATION OF PARENTAL RIGHTS~~
43 ~~PROCEEDINGS THAT ARE CONDUCTED PURSUANT TO THIS TITLE]~~, the court [may]
44 ~~[SHALL]~~ appoint a guardian ad litem to protect the juvenile's best
45 interests. [This] ~~[THE]~~ guardian ad litem shall be an attorney. [The
46 guardian ad litem is not the child's] ~~[DEPENDING ON THE CHILD'S AGE AND~~

1 ~~ABILITY TO EXPRESS AN OPINION, THE COURT MAY ALSO APPOINT AN~~ attorney
2 ~~[FOR THE CHILD].~~

3 ~~[G.] [J.]~~ Any guardian ad litem or attorney appointed for a
4 juvenile shall meet with the juvenile before the preliminary protective
5 hearing, if possible, or within fourteen days after the preliminary
6 protective hearing. The guardian ad litem or ~~THE CHILD'S~~ attorney
7 ~~appointed for the juvenile~~ also shall meet with the juvenile before all
8 substantive hearings. On a showing of extraordinary circumstances, the
9 judge may modify this requirement for any substantive hearing.

10 Enroll and engross to conform

11 Amend title to conform

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